

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Misc. No.258695-B of 2018

Mst. Zahid Tariq etc.

Versus

The State etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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24.05.2019.	Mian Abdul Jabbar, Advocate alongwith the petitioners. Malik Mudassar, Advocate for the complainant. Sh. Muhammad Nauman Siddique, Deputy Prosecutor General for the State alongwith Nasir, SI.
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Mst. Zahida Tariq and Rehan Tariq petitioners seek pre-arrest bail in case arising out of FIR No.1161 dated 12.11.2018 registered under sections 302, 34 and 109 PPC, at Police Station Manawan, District Lahore.

2. Arguments heard and record perused with the able assistance of learned counsel for the petitioners, learned counsel for the complainant and learned Law Officer.

3. It has been noticed that it is a single firearm shot case, which resulted Injury No.1A (entry wound) and Injury No.1B (exit wound) at the corpus of deceased (as per his postmortem examination report); said firearm shot is attributed to Zeeshan co-accused of the petitioners; no other injury of any nature has been found on the body of deceased during postmortem examination. Zahida Tariq (petitioner No.1), while empty handed has allegedly raised lalkara to co-accused Zeeshan Tariq, who with pistol had already come at the place of occurrence, prior to the arrival of Zahida

Tariq there; in said situation, the question that whether lalkara of Zahida Tariq was necessarily required by Zeeshan Tariq for making firearm shot, requires further inquiry within the meaning of section 497(2) Cr.P.C. As far as case of Rehan Tariq (petitioner No.2) is concerned, his age (as per copy of birth certificate appended at page 22 of the petition as Annexure-E) was about 12 years at the time of occurrence, learned counsel for the petitioner has also shown his original birth certificate, during arguments; said fact has also been confirmed by the learned Deputy Prosecutor General for the State, who after going through the record submitted that Investigating Officer has also mentioned age of Rehan Tariq as 12/13 years. As per FIR, Rehan Tariq was empty handed, although allegedly present at the place of occurrence, yet no specific overt act has been alleged against him.

As far as, general allegation against all accused persons mentioned in the FIR qua grappling with deceased and beating him is concerned, same has been falsified by the postmortem report because no such injury has been found on the dead body of deceased during postmortem examination. It has been mentioned in the FIR that occurrence has allegedly taken place at front of house of complainant in the street, whereas house of complainant is near to the house of accused, relevant portion is being reproduced:-

"تو اسی اثنا میں کاشف کے بھتیجے ذیشان عرف شانی اور اس کا بھائی ریحان جن کا گھر ہمارے گھر کے ساتھ ہے گھر سے نکلے۔"

Therefore, questions regarding alleged presence of Zahida Tariq and Rehan Tariq at the place of occurrence, sharing any common

intention and their vicarious liability require further probe within the meaning of section 497(2) Cr.P.C. In aforementioned circumstances, exaggeration on the part of complainant by joining hands with police, widening net and roping Zahida Tariq (being mother) and Rehan Tariq (being brother) of Zeeshan Tariq in the case, with **“malafide intention”**, cannot outrightly be ruled out. Both petitioners have already joined the investigation. Investigating police officer, present in the Court, has categorically stated that nothing is to be recovered from the petitioners.

4. Resultantly, instant application for pre-arrest bail is allowed, ad-interim pre-arrest bail already granted to the petitioners is confirmed subject to their furnishing fresh bail bonds in the sum of Rs.2,00,000/- (two lacs) each with one surety each in the like amount to the satisfaction of learned Trial Court within 15 days. However, it is clarified that the observations mentioned above are only tentative in nature and strictly confined to the disposal of instant petition for bail.

(Farooq Haider)
Judge

Approved for Reporting

(Farooq Haider)
Judge